

to costs, as under the circumstances of the case shall seem just.

This Order establishes a practice not in force in England. For here, it would seem, under the terms of the above Order, there may be a motion to dismiss, *at any stage of the cause*, if four weeks have elapsed after answer, if the plaintiff "is unreasonably delaying the suit." The words are "*in every other case*"—that is, in every case not provided for by the former Orders. It had been held in England, that a defendant could not move to dismiss during the pendency of a demurrer. Of course he cannot here, if it be his own demurrer, for he might set it down himself, but he is not prevented if the demurrer of another defendant is "unreasonably" delayed. It has been also held in England, that, pending a reference as to title, in a specific performance case, or after a decree or decretal order, there could be no motion to dismiss. (*Collins vs. Greaves*, 5 Hare, 596; *Bluck vs. Colnaghi*, 9 Simons, 411). But the above 68th Order seems to admit of a motion here, whether after or before any reference or decree, if the Plaintiff's delay is "unreasonable," and that the Court has power to decide on the question of the delay being reasonable or "unreasonable." And the Court would also consider, whether the cause is proper to be dismissed, or whether an Order to speed would not be more in furtherance of the ends of justice.

*Semble* motion may be made at any stage of the cause.